



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 5-28-2025
By: *[Signature]*

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 124TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON MAY 27, 2025

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Nilo S. Bigno		SB Member/ Acting Municipal Vice-Mayor/ Presiding Officer
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

Hon. Harvey S. Manawatao		Municipal Vice-Mayor
--------------------------	-------	----------------------

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Tanie A. Quillano		SB Member
------------------------	-------	-----------

ORDINANCE NO. 05
Series of 2025

“AN ORDINANCE TEMPORARY CLOSING THE HUBASON RIVER RESORT AND ADVENTURE TRAIL IN THE MUNICIPALITY OF CARMEN, DUE TO LANDSCAPING AND CONSTRUCTION ACTIVITIES FOR PUBLIC SAFETY PURPOSES”

Author: Hon. Michael C. Escuyos

Enacted by: All Member present

EXPLANATORY NOTE

This proposed Ordinance seeks to temporarily close the Hubason River Resort and Adventure Trail to the public while landscaping and construction works are being undertaken. The closure is necessary to safeguard the well-being of residents and guests from potential dangers associated with construction activities, such as falling debris, excavation hazards, and heavy equipment operation.

The temporary closure will also ensure that development works proceed without interruption, thereby accelerating the completion of the project and minimizing long-term inconvenience to the public.

This legislative measure is anchored on the general welfare clause of the Local Government Code and reflects the commitment of the Municipality of Carmen to provide a safe, sustainable, and improved tourism experience to all.

BE IT ORDAINED, by the Sangguniang Bayan of the Municipality of Carmen, Surigao del Sur, in session duly assembled, that:

Section 1. Title – This Ordinance shall be known as “**Temporary Closure of Hubason River Resort Ordinance**”.

Section 2. Purpose – This temporary closure is implemented to ensure public safety and to facilitate the timely completion of improvements, upgrades, and safety measures at the resort and trail.

Section 3. Temporary Closure – The Hubason River Resort and Adventure Train is hereby declared temporarily closed to the public effective June 1 to July 7, 2025, to allow for landscaping and construction activities to be conducted safely and efficiently.

Section 4. Duration of Closure – The closure shall remain in effect until the completion of all scheduled landscaping and construction activities, but not to exceed a period provided under Section 3 of this Ordinance, unless extended or shortened by a resolution of the Sangguniang Bayan based on a recommendation by the Municipal Engineering Office or the Office of the Mayor.

Section 5. Information Dissemination – The Municipal Tourism Office, in coordination with the Municipal Information Office, shall undertake adequate and timely dissemination of this ordinance through:

1. Posting on official bulletin boards;
2. Public announcements in local media;
3. Use of social media platforms and the official municipal website

Section 6. Penal Clause. Any person found forcibly entering or using the premises of the Hubason River Resort and Adventure Trail during the closure period, without proper authorization, shall be subject to a fine of One Thousand Pesos (Php1,000.00) or imprisonment of one (1) month, or both at the discretion of the court.

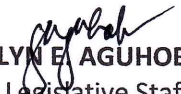
Section 7. Repealing Clause. All ordinances, rules, and regulations inconsistent with the provisions of this ordinance are hereby repealed or modified accordingly.

SECTION 8. Separability Clause. If any part or provision of this Ordinance is declared unconstitutional or invalid, the other parts or provisions not affected thereby shall remain in full force and effect.

SECTION 9. Effectivity. This ordinance shall take effect immediately upon approval and publication as required by law.

ENACTED this 27th day of May, 2025, at Carmen, Surigao del Sur.

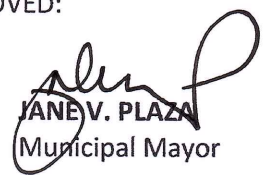
I HEREBY ATTEST to the correctness of the foregoing ordinance.


JOCELYN E. AGUHOB
Local Legislative Staff Assistant II/
Acting Secretary

CERTIFIED CORRECT:


NILO S. BIGNO
SB Member/
Acting Municipal Vice-Mayor/
Presiding Officer

APPROVED:


JANE V. PLAZA
Municipal Mayor